

Track 1 — Chapter Build Pass

MPEP Chapter 800 · Restriction in Applications & Double Patenting

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: Managing Multiple Inventions in One Application

Restriction practice governs when and how an examiner can split an application's claims into separately examined groups. It's frequently confused with the related-but-distinct doctrine of double patenting — know both, and know exactly where they diverge (especially the terminal disclaimer rule).

Rule 1: Basis for Restriction: Independent or Distinct Inventions (§802.02, §806)

PLAIN ENGLISH

An examiner may require restriction when an application claims **two or more independent or distinct inventions**, and examining them together would place an unnecessary/serious burden on the examiner (e.g., because they require separate searches or classification, or aren't obvious variants of each other). Restriction can be between different statutory categories (e.g., a process and an apparatus for practicing it, if not shown to be a mutually dependent combination) or between distinct species within a genus.

EXAMPLE

An application claims both a novel chemical compound and, separately, an unrelated mechanical device for packaging pills — genuinely different inventions requiring different searches. This is a proper basis for a restriction requirement between the two.

QUIZ

What is the fundamental basis required for a proper restriction requirement?

- (A) The application has more than 20 claims
- (B) The claims cover independent or distinct inventions with a serious search/examination burden if combined
- (C) The applicant requested restriction
- (D) The claims are directed to a single invention with multiple embodiments

Rule 2: Election of Species (§806.04)

PLAIN ENGLISH

When a claim covers a genus with multiple disclosed species, and the genus claim isn't in condition for allowance, examiners may require an **election of species** — the applicant picks one species to have examined first. If the elected species' generic claim is found allowable, other species claims patentable over the prior art and not patentably distinct from the elected species are then also examined.

EXAMPLE

An application discloses a genus of five chemical compounds under one generic claim, with a separate claim to each specific compound. If the genus claim isn't yet allowable, the examiner may require the applicant to elect one specific compound for initial examination.

QUIZ

If an elected species' claims are found allowable and the generic claim is also allowable, what happens to non-elected species claims that are not patentably distinct from the elected species?

- (A) They must be canceled permanently
- (B) They are rejoined and examined along with the allowable claims
- (C) They automatically issue without examination
- (D) They require a completely new application

Rule 3: Traversing a Restriction Requirement (§818)

PLAIN ENGLISH

An applicant can **traverse** (formally object to) a restriction requirement by explaining why the requirement is improper (e.g., the inventions aren't actually independent/distinct, or there's no serious burden). The applicant must also make an election (with or without traverse) so prosecution can continue on at least one set of claims while the propriety of the restriction is preserved for petition.

EXAMPLE

An applicant believes two claimed inventions are actually just different embodiments of a single inventive concept and traverses the restriction requirement, explaining why examining them together wouldn't create a serious burden — while still electing one group so prosecution isn't halted entirely pending resolution.

QUIZ

If an applicant disagrees with a restriction requirement, what must they do to both preserve the objection and keep prosecution moving?

- (A) File a petition only, without electing anything
- (B) Elect a group of claims, with traverse, stating reasons the requirement is improper
- (C) Ignore the requirement entirely
- (D) File a new application for each group

Rule 4: Rejoinder (§821.04)

PLAIN ENGLISH

Rejoinder occurs when claims to a non-elected invention are brought back into examination — most commonly, non-elected process/method claims are rejoined once elected product claims (that the process is tied to) are found allowable, since the process claims then patentably depend on that now-allowable product.

EXAMPLE

An application originally restricted between claims to a novel apparatus and a method of using that apparatus. Once the apparatus claims are found allowable, the previously withdrawn method claims (specific to that apparatus) are rejoined and examined, since they're now tied to allowable subject matter.

QUIZ

Rejoinder most commonly applies in which scenario?

- (A) When an applicant abandons the application
 - (B) When non-elected process claims are tied to now-allowable elected product claims
 - (C) When a restriction requirement is withdrawn entirely by petition
 - (D) When new matter is added to the specification
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Rule 5: Double Patenting vs. Restriction — Related but Distinct (§804)

PLAIN ENGLISH

Restriction practice and double patenting are related but different: restriction addresses examination burden for multiple inventions in **one** application; double patenting addresses improperly claiming the **same or an obvious variant** of an invention across two commonly-owned applications/patents. A **terminal disclaimer** can overcome an obviousness-type double patenting rejection (but not a same-invention double patenting rejection) by tying the patents' terms together and requiring common ownership.

EXAMPLE

A first patent claims compound X. A later, commonly-owned application claims an obvious variant of compound X. This raises an obviousness-type double patenting rejection, which can be overcome by filing a terminal disclaimer disclaiming any term of the later patent extending beyond the first patent's term.

QUIZ

A terminal disclaimer can overcome which type of double patenting rejection?

- (A) Same-invention (statutory) double patenting
 - (B) Obviousness-type double patenting
 - (C) Both types equally
 - (D) Neither type
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. An application claims a genus of compounds with a genus claim not yet allowable. The examiner requires an election of species. What must the applicant do?

- (A) Cancel the genus claim permanently
- (B) Elect one species for initial examination
- (C) File a divisional application immediately
- (D) Amend the genus claim to cover only one species permanently

2. Which of these is required for a proper restriction requirement?

- (A) A serious burden on the examiner if the inventions were examined together
- (B) The applicant's prior consent
- (C) More than 3 independent claims
- (D) A double patenting issue

3. Non-elected method claims tied to now-allowable elected product claims are handled through:

- (A) Abandonment
- (B) Rejoinder
- (C) A new restriction requirement
- (D) A terminal disclaimer

4. Which type of double patenting can be overcome with a terminal disclaimer?

- (A) Statutory (same invention) double patenting
- (B) Obviousness-type double patenting
- (C) Neither
- (D) Both equally

5. An applicant elects a group of claims but also traverses the restriction requirement. What is preserved by traversing?

- (A) Nothing — traverse has no legal effect
- (B) The applicant's right to challenge the propriety of the restriction requirement
- (C) Automatic rejoinder of all claims
- (D) An automatic filing date extension

Memorize This: Key Tests & Terms

- Restriction needs BOTH independent/distinct inventions AND a serious examination burden if combined.
- **Election of species**: pick one species for initial examination; genus/other species can be **rejoined** later if allowable.
- To preserve an objection while keeping prosecution alive: elect **with traverse**, stating reasons.
- **Rejoinder**: withdrawn claims (often method/process) come back once tied to now-allowable elected claims.
- Terminal disclaimer cures **obviousness-type** double patenting only — not same-invention double patenting.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: Basis for Restriction: Independent or Distinct Inventions (§802.02, §806)

What is the fundamental basis required for a proper restriction requirement?

Answer: B

Restriction requires both independence/distinctness of the inventions AND a genuine serious burden on the examiner — not merely that an application has multiple claims or embodiments of the same invention.

Rule 2: Election of Species (§806.04)

If an elected species' claims are found allowable and the generic claim is also allowable, what happens to non-elected species claims that are not patentably distinct from the elected species?

Answer: B

Once the genus is shown allowable, non-elected species claims patentable over the art and not patentably distinct get rejoined for examination — species election is about examination order, not permanent exclusion.

Rule 3: Traversing a Restriction Requirement (§818)

If an applicant disagrees with a restriction requirement, what must they do to both preserve the objection and keep prosecution moving?

Answer: B

An election (with traverse) is required to keep the application moving; simply objecting without electing risks the application being treated as non-responsive.

Rule 4: Rejoinder (§821.04)

Rejoinder most commonly applies in which scenario?

Answer: B

The classic rejoinder scenario links previously withdrawn method/process claims back in once the product claims they depend on for patentability are found allowable.

Rule 5: Double Patenting vs. Restriction — Related but Distinct (§804)

A terminal disclaimer can overcome which type of double patenting rejection?

Answer: B

Terminal disclaimers only cure obviousness-type double patenting; same-invention double patenting (claiming the literal identical invention twice) cannot be cured this way — the claims must actually be amended or canceled.

Chapter Close-Out Quiz

1. (B)

Election of species requires the applicant to choose one species for examination first — it's about examination sequencing, not permanent loss of the other species claims.

2. (A)

A serious search/examination burden, combined with independence or distinctness of the inventions, is the core legal basis for restriction — applicant consent isn't required and claim count alone isn't the test.

3. (B)

Rejoinder is the mechanism that brings withdrawn claims back into examination once they're tied to allowable subject matter.

4. (B)

Only obviousness-type double patenting can be cured by a terminal disclaimer; same-invention double patenting requires actually changing the claims.

5. (B)

Traversal preserves the applicant's objection to the restriction requirement's propriety (for petition), while election keeps prosecution moving on at least one claim set.